EVEN HAEZER: HILCHOT GITTIN - DAYANUT SHIURIM

A Wrong Father's Name in the Get

Even HaEzer, Gittin 129:10-16

Sefer: Shulchan Aruch, Even HaEzer, Hilchot Gittin **Siman:** 129, Seifim 10-16 **Shiur:** A Dayanut shiur by Dayan Daniel Kada, Wednesday 19 January 2022

These notes are based on an automatic transcript of the recording.

Where We Are

The previous shiur covered the meshumad and the ger (Seifim 5-6), titles such as Kohen and Levi (Seif 7), and what to write when there is no father's name, or the father is not Jewish (Seif 9). We saw that although *min hadin* the father's name does not have to be written, if it is written that is fine. This shiur opens with Seif 10: what if the father's name **was** written, but wrongly?

The Rabbi opened with a quiz question for the class: **in Tanach, what is the name of Yoav's father?** Everyone answered: Yoav ben Tzeruya, so his father is Tzeruya. "Okay, we'll come back to that later."

Part 1: The Wrong Father's Name (Seif 10)

> Yosef ben Shimon who changed and wrote "Yosef ben **יוסף בן שמעון ששינה וכתב יוסף בן שמואל, פסול** .Shmuel": the get is pasul

Why is it pasul if the father's name is not required?

The source is the **Rosh** and the **Terumat HaDeshen**. The Rosh says it is pasul because **people will think it is someone else**.

But did we not learn in Siman 128 that the *mekom leidah* (place of birth) does not have to be written, and if it was written wrongly it is still kasher? The answer: the father's name is different. It is **more like the *mekom dirah*** (place of residence). We learned in Siman 128 that changing the place of residence makes the get pasul. The father's name is just as fundamental to a person's identity. So although one does not have to write it, writing it wrongly invalidates the get.

Rashi: if she remarried, she does not leave

The **Beit Yosef** quotes the **Orchot Chaim**, who brings **Rashi**: *im nis'et lo tetze*, if she has already remarried on this get, she does not have to leave her second husband.

Opinion	Ruling
Rosh, Terumat HaDeshen, Tur	Pasul. *Tetze*: if she remarried, she must leave
Rashi (via the Orchot Chaim)	If she has remarried, she does not leave
Shulchan Aruch	Brings the Rosh as the *stam* (unattributed main ruling) and Rashi as *yesh omrim*

The Rema's qualification

The Rema, quoting the Orchot Chaim, limits Rashi: his leniency applies only where the man had been **known (*muchzak*) by the wrong name for at least thirty days**. If everyone knows him as Yosef ben Shimon, and for the last ten days he has called himself Yosef ben Shmuel, and the get says ben Shmuel, then even Rashi agrees it is pasul.

The Rabbi noted that if one looks in the Beit Yosef, this does not seem to be Rashi's own explanation. Rashi says the institution of writing *vechol shum* was made because of people who would deliberately write the wrong name of their father, so that all names would be covered. The implication is that for Rashi, under all circumstances, a change in the father's name is kasher bediavad. But that is how the Rema understands Rashi, and that is the psak: even according to the *yesh omrim*, only if he was known by that name for at least thirty days.

What is the halacha lema'aseh?

A student suggested that the Rema rules this way. The Rabbi disagreed: "The Rema is just qualifying the *yesh*. How do you see he's paskening that?" The general rule is that where the Shulchan Aruch brings a *stam* and a *yesh*, **the halacha is like the stam**.

- **The Get Pashut** says that based on the Shulchan Aruch alone, the halacha is *tetze*.
- But he also quotes a teshuva of the **Beit Yosef in Avkat Rochel**, where he is more hesitant and suggests perhaps one can rely on Rashi.
- So the **Get Pashut concludes**: we instruct the husband according to the stam, that they should separate. But **if the husband wants to stay with her, we cannot force him** not to.

A student pointed out that there are different levels of *bediavad* with a get: if it has been written but not given, you rewrite it; if it has been given, do you give it again; and the most extreme, she has already remarried. Perhaps the Shulchan Aruch only relies on the lenient view in the most extreme case. The Rabbi answered that this is not a compromise between two views: the first view says pasul in all circumstances, and Rashi says kasher once she has remarried. The language would have looked different if the Shulchan Aruch intended a compromise.

Bottom line: if this happens, we advise the husband to separate, but if he wants to stay with her, we cannot really object.

Part 2: Three Limitations on Seif 10

There are situations where one can be lenient:

1. **Where there is a doubt whether it is a mistake at all.** The Get Pashut says we certainly do not protest in such a case. We only protest when it is clearly a mistake.

2. **The wife's father's name.** The Get Pashut makes a very interesting point. The rule of *tetze* is about a change in the **husband's** father's name. If the **wife's** father's name was changed, perhaps bediavad one can be lenient. Why? Because once women marry, they are known by their husband's name. This was always so among the Spanish and Portuguese and older Sephardi communities, and still is: in the S&P community a *mi sheberach* or a memorial for a married woman says "Sarah **de** Avraham", Sarah the wife of Avraham, not her father's name. So people do not know her as Sarah bat Shimon; they know her as Sarah, wife of Avraham. It is more comparable to the *mekom leidah* than to the *mekom dirah*. A student objected: if the name written is a complete mistake, unrelated to the husband, it is still wrong. "That's a fair point. It's still wrong." The Rabbi agreed it is "obviously not an answer" on its own, but something to combine with other factors (*litzaref*) when necessary.
3. **Only a real change.** The **Pitchei Teshuva** brings that this applies only to a *shinui mamash*. If the father's name is Yitzchak Shmuel and one wrote Yitzchak Shimon, that is a real change. If one wrote only "Yitzchak" or only "Shmuel", that is just missing information, not a change, and it is fine.

The Pitchei Teshuva also brings a long piece about one Acharon who was brave enough to be lenient against all the Rishonim and Acharonim, and everyone came out strongly against him. One cannot even combine his view as a *snif* (a supporting consideration).

Part 3: Can a Son Rename His Father?

Even according to Rashi, what case is meant? A man everyone knows as Yosef ben Shimon starts calling himself ben Shmuel? Or a man who **arrives in a new town** where no one knows him, calls himself Yosef ben Shmuel for six months, and the get is written that way, and later it emerges that in his home town he was Yosef ben Shimon?

"Essentially, the question here is: do you as a son have the ability to give yourself a new identity of your father's name? You can change your own name, but can you change your father's name?"

This is not the same as a man with two names in two places (Seif 4), because everything until now was about **your own name**, which you have power over. Here the father has one name in his town, and the son, perhaps because his father is a known *rasha* or he is embarrassed of him, calls himself by a different father's name.

Opinion	Ruling
Terumat HaDeshen	Absolutely not. "Your father is your father is your father, full stop." If your father has two names, fine, but he has one, and you cannot give him a new one. It remains a change
Radbaz	Part of calling yourself a name is how you identify with your father. You can call yourself "Yosef ben Shmuel" as a second name for all intents and purposes
Pitchei Teshuva	Rules like the **Radbaz**. The whole seif applies only where everyone in this town knows the father's real name. If no one knows the old name, writing the name he has been using is fine

A student mentioned someone whose middle name is "Ben-Zion", which is common. The Rabbi agreed that happens, but here we mean a case where the Beth Din asked "what is your father's name?" and he gave this name.

A wrong title

If the father's name was correct but a wrong title was added, for example "Levi" or "Kohen" when he is not, the **Beit Meir** is lenient: it is like the *mekom leidah* and should not be a problem.

Part 4: Yoav ben Tzeruya

Now the answer to the opening quiz. The Rabbi said that when he learned this Pitchei Teshuva a few years earlier, he was shocked.

The **Pitchei Teshuva** writes in the name of the **Get Pashut** that if one **wrote the mother's name** in the get instead of the father's, it is **kasher**, because everyone knows it is a woman's name. This is not the case from the previous shiur, where there is no Jewish father. Here there is a Jewish father with a name, and for whatever reason the mother's name was written.

But, says the Get Pashut, what about a name like **Simcha**, used for both men and women? If the mother's name is Simcha and he writes "ben Simcha", people will think it is a different man, since his father is Shimon. Then there may be a problem.

The example the Get Pashut gives is **Yoav ben Tzeruya**. "My whole life, Yoav ben Tzeruya, I always thought Tzeruya was his father's name. And it's not. Tzeruya is his mother's name." Ask anyone, the Rabbi said, and they will tell you Tzeruya is the father. A student looked it up: Divrei HaYamim lists Tzeruya as **David's sister**.

A meshumad father

The Rema discusses a man whose father is a meshumad, who is called to the Torah by his grandfather's name. People still know his father is a meshumad. The Rabbi's practical advice: where the father is a meshumad, it is better to leave his name out, rather than "start getting into complicated scenarios" of which name to write.

Seif 10 in brief: if the father's name was wrongly written, *tetze*, unless the husband does not want to separate, and only where it is clearly a mistake and everyone knows his father's real name.

Seif 11 was covered earlier: almost all Rishonim hold that a get without names is invalid, except the Mordechai's view. *Pasul* in the Shulchan Aruch most likely means *batel*, which is why the children are mamzerim *min haTorah*, against the Beit Shmuel's suggestion that it is only *derabbanan*.

Part 5: A Third Place (Seifim 12-13)

מי שיש לו שם אחד בגליל ושם אחד ביהודה, והלך למקום אחר ושם קורין אותו בשם אחר One who has one name in the Galil and one name in Yehuda, and went to another place where he is called by a different name.

Until now we discussed a man with one name in one place and another name in another place, divorcing in one of them. Now he has two names, but he is in **a third place**, say France, where no one knows him by either of those names.

- **Lechatchila:** write the French name and the names he has in Yehuda and the Galil.
- **Bediavad:** if only the French name, the name where he is now, was written, it is fine.

The order of names

The Rabbi asked the class: what if one wrote "Yehuda-name *de-mitkarei* Galil-name *de-mitkarei* French-name", with the French name last?

A student suggested a problem, since the tafel may not come before the ikar. The Rabbi corrected: we learned that one may not write **tafel *vechol shum***, but we learned clearly from the **Rivash** in Seif 2 that **tafel *de-mitkarei* ikar** is fine. So it should be the same here, and the order does not matter.

- **The Get Pashut** suggests that may only be true when he is in one of those two places. Here, both names come first and he is not known by either in the third place, so perhaps it is pasul.
- **The Mishneh LaMelech** completely disagrees, and the **Pitchei Teshuva** rules like him: there is no difference between this and Seif 2. Lechatchila write the French name first; bediavad, if written last with *de-mitkarei*, it is fine.

With *vechol shum*: Seif 13

What if one wrote the Yehuda or Galil name and then ***vechol shum***, to include the French name? A student suggested *batel*. "That's not what we learned in Seif 2... In Seif 4 we learned pasul." But here:

> If he wrote the name **כתב שם שיש לו במקום אחר, וכתב וכל שום שיש לו בשביל מקום כתיבה ונתינה, בטל** .he has in another place and wrote "vechol shum" for the place of writing and giving, it is void

The student explained it well: in the earlier case there was an ikar and a tafel. Here, the name written **is not a name at all in this place**. "Excellent, very good, well done."

- The Shulchan Aruch quotes the **Ran**, who says *einah megureshet*.
- The **Maggid Mishneh** says otherwise. The **Beit Yosef** does not want to make a machloket between the Ran and the Maggid Mishneh, so he explains the word *pasul* as *batel*, and rules it is batel.
- Why is this worse than Seif 4, which is only pasul *derabbanan*? Because in Seif 4 at least the name he has **in the place of writing** was written, even as the tafel. Here **no one in this place knows the name** written at all, so the get is batel.

Summary of Seifim 12-13: in a third place with a new name, always write that name first. If only that name was written, it is fine; lechatchila add the others. If the other names were written followed by *vechol shum*, the get is batel.

Part 6: Real Doubts About a Name, and Changing Towns

What if there is a **real doubt** about how to write a name?

- At the end of the siman we will see cases of such doubt that **two gittin** are given. For example, Ashkenazim give two gittin for the name *Matisyahu*, one spelled *Matityahu* and one *Matisyahu*. Sephardim always write *Matityahu*.
- A student described a recent case with a Sephardi first name, Salim, which became a big argument among Rabbanim over whether to spell it with an *aleph*. The Rabbi's view: "We Sephardim don't add in *alephs* unless it's protracted." Ashkenazim add *alephs* and *ayins* everywhere. One argument from the other side was that for Ashkenazi readers, an *aleph* would make it sound like "Solem."

Moving to a new town to change one's name

Suppose such a doubt cannot be resolved. The husband, fed up with the Rabbanim in Yerushalayim arguing over two or three gittin, moves to Bnei Brak, calls himself **Shmuel**, and two weeks later asks the Beth Din there for a get in the name Shmuel. Can one go to a new place where no one knows the previous name, take a new name, and divorce with it?

Opinion	Ruling
Penei Yehoshua	*Hevel havalim*. It is not about the place where you give the get. You will come back to your original town, they will see the get and say "this is a ridiculous get, it's not who you are"
Tiv Gittin (brought in the Pitchei Teshuva)	More doubtful; perhaps one goes after the place where the get is given
Acharonim	If he lives there **thirty days** and establishes his name, even the Penei Yehoshua should agree. A name can be established in thirty days

The reverse case. The get was given, and then they realise the wife's name was written wrongly. Can she move to a new place, live there thirty days under the name in the get, and be divorced with it? Obviously not, because at the time the get was given, it was not her name.

The **Get Pashut** suggests that perhaps, after the thirty days, the husband could make a *kinyan* to take the get back from her and then give it to her again, since it was written *bishmah* (for her). His only hesitation is that it was originally written *bipsul*, so the invalidity remains attached to it. He is not happy with it.

Part 7: Two Names in the Same Place (Seif 14)

מי שיש לו שני שמות... ראובן ושמעון... יכתוב ראובן דמתקרי שמעון. ואם כתב ראובן שמעון ביחד, יש מי שאומר שפסול

One who is called Reuven by some and Shimon by others writes "Reuven *de-mitkarei* Shimon." If he wrote "Reuven Shimon" together, some say it is pasul.

Rema: but if he is sometimes called by both names together, or signs that way, it is kasher.

A student gave a real example: an uncle named **Yehuda David**. His English name is David, almost everyone calls him David, some family call him Yehuda, and he is called to the Torah as Yehuda David. That is the Rema's case: writing "Yehuda David" would definitely be fine. But if some call him David, some call him Yehuda, and **no one** calls him Yehuda David, not even at the Torah, and the get says "Yehuda David", the Shulchan Aruch rules *yesh mi she-omer shepasul*.

The background: Terumat HaDeshen and Maharik

Opinion	Ruling	Reason
Terumat HaDeshen	Kasher	At the end of the day he is known by both names
Maharik	Pasul	No one knows him by the combined name. He is only known as Yehuda, or as David

The Beit Yosef, *oseh shalom bimromav*. He suggests there is no machloket. The Terumat HaDeshen speaks of someone called by both names **in the same place**: in Perth, some family and friends call him Yehuda and others call him David, so "Yehuda David" is recognisable. The Maharik speaks of someone called Yehuda **in Perth** and David **in Canberra**, where each place is unlikely to know the other name, so "Yehuda David" is pasul.

How does the Shulchan Aruch rule?

The Shulchan Aruch does not distinguish. A student argued that the phrase *yesh mi she-omer* itself shows there is a machloket. The Rabbi disagreed:

"That's not correct. It's a well-known *klal*: whenever the Shulchan Aruch quotes a halacha which he finds in only one Rishon, not a *din* from the Gemara, not a consensus, he writes *yesh mi she-omer*."

So *yesh mi she-omer* alone does not prove a machloket. Two readings:

- **The Get Pashut:** the Shulchan Aruch has **retracted** from the Beit Yosef. If he held there was no machloket, he would surely have specified that the pasul ruling is for two places. Since he does not distinguish, there is a machloket (Terumat HaDeshen: kasher in all cases; Maharik: pasul in all cases), and the Shulchan Aruch rules like the Maharik, at least lechatchila, even in the same place.
- **The Beit Shmuel** reads the Beit Yosef's reconciliation into the Shulchan Aruch: pasul only where he is known by two names in two places; in the same place, kasher. The Rabbi found this a stretch: "You would expect the Shulchan Aruch to say something like that."

"If anything, the Get Pashut makes much more sense."

The *nafka mina*: the Yehuda-David case, in one town, with friends calling him Yehuda and family David, never called by both together, and the get says "Yehuda David": **pasul** according to the Get Pashut, **kasher** according to the Beit Shmuel.

Jewish and non-Jewish names

The Rema continues: if Jews call him by one name and non-Jews by another, write "*Ploni de-mitkarei Ploni*". But if the non-Jewish name is simply how non-Jews **pronounce the Jewish name**, write just the Jewish name. The Rabbi's illustration: Chassidim may say "Lunden" for London; one need not write "Lunden *de-mitkarei* London", because one comes from the other.

"Bear this in mind, by the way, because now we're going to get to loads and loads of little *pratim*... it's going to get very, very detailed."

Part 8: *De-mitkarei* or *Ha-mechuneh*?

The Rema says elsewhere that **whenever a non-Jewish name is written, one writes *ha-mechuneh*** (who is nicknamed), not *de-mitkarei*. Sephardim do not use the word *ha-mechuneh* at all.

The Perth students said that the Ashkenazi sofer they work with mostly writes *de-mitkarei* now. A sample get they had sent the Rabbi read "Gideon *de-mitkarei* Justin", though Gideon and Justin are not related at all.

Yet here the Rema writes *de-mitkarei* for a non-Jewish name. The Acharonim "bend over backwards" to explain it. "There's no rhyme or rhythm with all of this. It's very difficult. But we'll see it as we go along."

Part 9: Shortened Names (Seif 15)

What if the second name is a nickname, "more than just a nickname, a childish way of saying your name"? The Shulchan Aruch gives Yitzchak and its short form, and Aharon and its short form. The **Beit Shmuel** adds examples such as Binyamin and a short form, Avigail and Avigi, Tzipora and Pura, Shmuel and Muel.

- **There is no need to write the shortened name.** One can assume it is the same name.
- If someone else in town shares the name, it is worthwhile writing it. And if you want to write it, there is no problem.
- **If the nickname has its own standing as a name, it must be written.** A student's example: **Daniel** and **Dan**. Dan is a name in its own right, so one must write "Daniel *de-mitkarei* Dan." The class debated whether **Ari** is a name in its own right or just short for Ariel; in English it certainly is. The Rabbi noted that in his own case, being called Danny occasionally would allow just Daniel, but if Danny is really his main name, both should be written.

Part 10: Yehuda, Leib and Leon (Seif 16)

"As I told you at the beginning of the siman, none of these things are found in the Gemara; these are all the Rishonim's conjectures," which is why it is hard to put the seifim together.

The Shulchan Aruch discusses **Leon**, which means lion (*aryeh*), and Yehuda is called by that name because of *gur aryeh Yehuda* (Bereshit 49:9). So one writes "**Yehuda *de-mitkarei* Leib**." This was a very common family of names: Leon is common among the Spanish and Portuguese and in English, Ashkenazim use Leib, and Middle Eastern Jews use **Aslan** (also found in Arabic; many Iraqi Jews are called Aslan).

The Shulchan Aruch and the Rema

	When to write *de-mitkarei*	When to write *ha-mechuneh*
Shulchan Aruch	The second name **derives from** the first (Leib from Yehuda)	The second name has **nothing to do with** the first. Jewish or non-Jewish does not matter
Rema	The second name is **Jewish**	The second name is **non-Jewish**

But this seems to **contradict the Rema at the end of Seif 14**, where he wrote *de-mitkarei* for a non-Jewish name.

- Some say that there it is *lav davka*, and he really means *ha-mechuneh*.
- **The Beit Shmuel** answers: in Seif 14, **even the "Jewish" name is a non-Jewish name**: Jews call him Leib and non-Jews call him Leon. Both are on the same level, so one writes "Leib *de-mitkarei* Leon." Here, the Jewish name is a real Jewish name, Yehuda, so one writes "**Yehuda *ha-mechuneh* Leib**." In the Rema's thinking, *ha-mechuneh* marks a different language or culture.

So, a student asked, Yitzchak and Isaac? According to the Rema, *ha-mechuneh*: it is just the English version.

Next time: the rest of Seif 16 with Seifim 17 and 18, "and the rest is literally plain sailing all the way till the end."

Summary of the Halachot

1. **A wrong father's name** (Seif 10) makes the get pasul, since the father's name is like the *mekom dirah* (Rosh). Rashi allows her to stay if remarried; the Rema limits this to where he was known by that name for thirty days. The halacha follows the *stam*: advise them to separate, but if the husband wants to stay, we cannot force him (Get Pashut).
2. **Leniencies:** a doubtful mistake; perhaps an error in the **wife's** father's name (women being known by their husband's name); and an omission rather than a real change.
3. **A son cannot rename his father** in a place where the father's real name is known (Terumat HaDeshen), but where no one knows it, the name he uses is fine (Radbaz, Pitchei Teshuva).
4. **The mother's name instead of the father's** is kasher, unless it is a name used by men too (Get Pashut). Yoav ben Tzeruya is named after his mother.
5. **In a third place** (Seif 12), write the local name first; bediavad that name alone is fine, and with *de-mitkarei* the order does not matter (Mishneh LaMelech, Pitchei Teshuva).
6. **Other names plus *vechol shum*** for the local name (Seif 13) is **batel**, since the written name is not known there at all.
7. **A new town for a new name** works only after thirty days of being known by it. A wrongly named get cannot be fixed by the wife adopting the name.
8. **Two names used separately** (Seif 14): write *de-mitkarei*. Writing them together is pasul according to the Get Pashut even in one town; the Beit Shmuel limits this to two towns.
9. **A short form** of a name need not be written, unless it is a name in its own right (Daniel and Dan).
10. **Yehuda and Leib** (Seif 16): the Shulchan Aruch writes *de-mitkarei* for a derived name; the Rema distinguishes Jewish (*de-mitkarei*) from non-Jewish (*ha-mechuneh*) names.

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